What can I do about racism and discrimination?

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Identifying racist speech, detecting false information and understanding how hate speech is constructed are important. But there comes a point when we need to go further:

What happens when racism affects us directly? What can we do?

Not all racist expressions or behaviours have the same legal consequences. A racist comment, discrimination in access to housing, a threat and public incitement to hatred are different situations and may require different responses.

What can I do about racism and discrimination?

This chapter offers some basic tools for understanding these differences, knowing when a situation may have legal consequences, what evidence is important to keep and where we can seek help.

This guide does not replace legal advice. In a specific situation, it is important to seek professional support or contact specialist services.

5.1. Are racism, discrimination and hate crime the same thing?

No. Although they are related, they are not the same thing.

Racism is an ideology based on the idea that some human groups, cultures or ethnic groups are superior to others. Legally, racism is not in itself a criminal offence. Certain behaviours motivated by racism can have legal consequences.

Discrimination occurs when a person receives unequal or unfavourable treatment on grounds such as racial or ethnic origin, nationality, religion or

5.1. Are racism, discrimination and hate crime the same thing?

other protected characteristics. It can occur, for example, in access to work, housing, a shop, a school or a public service.

Discrimination is not always a criminal offence, but that does not mean it has no consequences. Depending on the case, it can be reported and sanctioned through other routes, such as administrative proceedings.

A hate crime falls within criminal law. It may arise when certain criminal acts are linked to a

5.1. Are racism, discrimination and hate crime the same thing?

discriminatory motivation, or when conduct occurs that the Criminal Code specifically punishes, such as certain forms of public incitement to hatred, discrimination or violence.

There is another important point: racism can also aggravate another offence. For example, if an assault, threat or act of damage occurs and a racist motivation is established, that motivation may be treated as an aggravating circumstance.

Key point

Not every racist act is a hate crime. But the fact that conduct is not a criminal offence does not mean it is acceptable or that it cannot be reported or sanctioned through other routes.

Legal framework for section 5.1

Criminal Code, Codi Penal:

- Article 510 regulates certain behaviours related to public incitement to hatred, hostility, discrimination or violence, among other conduct.

- Article 22.4 provides for an aggravating circumstance when an offence is committed for racist, antisemitic or other discriminatory reasons provided for by law.

Other legislation against discrimination:

- Catalonia's Law 19/2020 on equal treatment and non-discrimination, Llei 19/2020, d’igualtat de tracte

Legal framework for section 5.1

i no-discriminació.

- Spain's Law 15/2022 on comprehensive equal treatment and non-discrimination, Llei 15/2022, integral per a la igualtat de tracte i la no-discriminació.

5.2. When can racist conduct have legal consequences?

Not all racist expressions have the same legal consequences. Context, seriousness, who the conduct targets, and what it causes or seeks to cause are important.

To understand this better, we can consider different situations:

Racist comments, jokes or expressions

A racist comment, an offensive joke or a generalisation about a group of people can be discriminatory and cause harm without necessarily constituting a criminal offence.

This does not mean it is unimportant. Depending on where it occurs and its consequences, it may give rise to other forms of reporting or action.

Discriminatory treatment

When racism becomes unequal treatment that restricts a person's rights, we may be facing discrimination.

For example:

- denying access to housing because of skin colour or origin;

- rejecting a person in a recruitment process for racist reasons;

- providing discriminatory treatment in a shop, school or public service.

These situations may have legal consequences even

Discriminatory treatment

when they are not criminal offences. In many cases, administrative routes exist for reporting them.

Threats, assaults or other offences with a racist motivation

If a person is threatened, assaulted or subjected to another offence and there is a racist or discriminatory motivation, that motivation may have consequences under criminal law.

When reporting, it is therefore important to explain not only what happened, but also any element that may show a racist motivation: words used, messages, symbols, previous comments or other circumstances.

Public incitement to hatred, discrimination or violence

Certain public behaviours may constitute a criminal offence when they promote or incite hatred, hostility, discrimination or violence against a person or group for racist or other discriminatory reasons provided for by law.

Certain public acts of humiliation or serious contempt against these groups may also have criminal consequences.

Key point

When faced with racist conduct, the question is not only “Is it a criminal offence or not?” A situation that does not reach the threshold of a criminal offence may still be discrimination, and another route may exist for reporting it or taking action.

Legal framework for section 5.2

Criminal Code:

- Article 510 covers different behaviours related to public incitement to hatred, hostility, discrimination or violence, and certain acts of humiliation or contempt on discriminatory grounds.

- Article 22.4 provides for an aggravating circumstance based on racist or other discriminatory motives in the commission of an offence.

- Depending on the conduct, other offences may also be relevant, such as threats, Articles 169 and 170, serious insults, Article 208, or degrading treatment,

Legal framework for section 5.2

Article 173.1.

Legislation on equal treatment and non-discrimination:

- Catalonia's Law 19/2020 on equal treatment and non-discrimination.

- Spain's Law 15/2022 on comprehensive equal treatment and non-discrimination.

5.3. What should I do if it happens to me?

If you experience or witness a racist or discriminatory situation, it is normal not to know how to react in the moment. You do not need to know from the outset whether what happened is discrimination, an administrative infringement or a criminal offence. What matters most is preserving information that may later help explain and substantiate the facts.

1. Keep the evidence

Keep anything that can show what happened:

- screenshots;
- messages, emails or audio recordings;
- photographs or videos you already hold legitimately;
- documents, advertisements or communications;
- the name or profile of the person or organisation involved;
- for online content, also save the link, URL, and, if possible, the date and time.

1. Keep the evidence

Do not delete the original messages or content, even if you have taken a screenshot.

2. Write down what happened

As soon as you can, write a brief account of the events: what happened, when, where, who was there and what was said or done.

If other people were present, also note who could be a witness.

This information may be important later, especially if you need to explain the events to a specialist service or make a formal report.

3. If it happens online, preserve the content before reporting it

For a racist social media post, comment or message, first keep the evidence. You can then use the platform's own tools to report the content.

This matters because content may be removed, making it harder to establish what was published.

4. Also explain why you believe there is a racist motivation

When seeking help or reporting events, try to explain not only what happened, but also any elements that may show a racist or discriminatory motivation.

For example: the words used, comments about your origin or skin colour, symbols, earlier messages or other circumstances related to the events.

Key point

You do not need to know which law has been broken before asking for help. Keep the evidence, document what happened and seek advice. The most appropriate route can then be assessed.

Legal framework for section 5.3

The Criminal Code, Catalonia's Law 19/2020 on equal treatment and non-discrimination, and Spain's Law 15/2022 on comprehensive equal treatment and non-discrimination.

5.4. Where can I seek help or make a report?

Not every situation should be reported in the same place. The appropriate route depends on what happened, how serious the events are and whether there is an immediate risk.

You do not need to decide on your own whether what you experienced is discrimination, an administrative infringement or a possible criminal offence. You can seek advice to help assess the case and decide on the most appropriate route.

If there are threats, assaults or signs of a possible criminal offence

You can make a report to the Mossos d’Esquadra or other police forces.

When explaining what happened, also mention any element that may show a racist or discriminatory motivation: insults related to origin or skin colour, expressions used, messages, symbols or other circumstances.

If you have experienced discrimination

Where there is discriminatory treatment that does not necessarily constitute a criminal offence, specialist routes also exist for obtaining advice and making a report.

In Catalonia, you can contact the Oficina d’Igualtat de Tracte i No-discriminació, the Office for Equal Treatment and Non-discrimination, which deals with discrimination linked, among other grounds, to racial or ethnic origin.

In Barcelona, you can also contact the Oficina per la No Discriminació, OND, a municipal service offering information, guidance and advice on discrimination.

Where can you find help?

- Oficina per la No Discriminació, OND, Barcelona: information, advice and support in situations of discrimination. Official information: https://guia.barcelona.cat/ca/detall/oficina-per-la-no-discriminacio_9834816361 6.html

- Institut de Drets Humans de Catalunya, IDHC, service guide: a directory of services and resources for advice and support in situations of discrimination and hate crime. Guide: https://www.idhc.org/es/publicaciones/servicios-de-entidades-y-administraciones-de-barcelona-para-victimas-de-delitos-de-odio/

If it happens online

After preserving the evidence, you can report the content on the platform itself.

If there are threats, incitement to violence, serious harassment or other acts that may constitute a criminal offence, reporting content to the platform does not replace the possibility of reporting the events to the authorities.

If there is immediate danger

If you or another person faces immediate risk or danger, call 112.

What if the person affected is a minor?

A minor can also disclose and report racism or discrimination. Their vulnerability and the specific circumstances of the case may also have particular legal relevance.

It is especially important that they can be supported by a trusted adult or a specialist service.

Key point

You do not need to know the correct route before asking for help. If you have doubts, seek advice, explain what happened and bring any evidence you have been able to keep. A specialist service can help you assess the next steps.

Legal framework for section 5.4

Equal treatment and non-discrimination:

- Catalonia's Law 19/2020 on equal treatment and non-discrimination.

- Spain's Law 15/2022 on comprehensive equal treatment and non-discrimination.

Criminal law:

- The Criminal Code, especially Article 510 concerning certain behaviours related to hatred, discrimination or violence, and Article 22.4 concerning aggravation based on discriminatory motivation.